

24STCV01168 24STCV01168

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-07-10

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Case Number: 24STCV01168 Hearing Date: July 10, 2026 Dept: 617

Dept.

617

Date:

7-10-26

Case

#: 24STCV01168

Trial

Date: 11-2-26

VEXATIOUS LITIGANT

MOVING

PARTY: Defendants, David Westley, Victoria Westley, and Han Realty Corp.

RESPONDING

PARTY: Plaintiff, Nick A. Alden

RELIEF

REQUESTED

Motion

to Declare Plaintiff a Vexatious Litigant

SUMMARY

OF ACTION

In

January 2012, Defendants David and Victoria Westley, both sole representatives of Han Realty Inc., retained attorney Plaintiff Nick A. Alden to represent them to avoid foreclosure of their home. Following several years of litigation, Plaintiff presented a legal bill of \$1.35 million. Han Realty owed \$1.4 million on a mortgage to Bank of America. Plaintiff represents that Bank of America agreed to “pay” the outstanding legal bill by reconveying the property in exchange for \$50,000. Plaintiff then agreed to give the Westleys \$400,000 from the \$1.35 million he purportedly received from Bank of America. The agreement with the Westleys was apparently secured with a \$960,000 deed of trust, which Plaintiff alleges was false. Plaintiff alleges discovery of the fraudulent deed of trust upon efforts to record the document.

Meanwhile,

the Westleys “attempted to sell the house” to third parties Victor and Nicole Palumbo. A title report revealed the property was encumbered with \$3.8 million in liens. On August 12, 2016, the Palumbos filed a complaint against the Westleys and Han Realty. Plaintiff initially represented the Westleys in the Palumbo litigation until disqualification “after six years of litigation” because Plaintiff was a material witness in the sale to the Palumbos and had an interest in the property. The liens were subsequently expunged.

On

January 16, 2024, Plaintiff, in pro se, filed a complaint for Fraud and Deceit, Declaratory Relief, and Breach of Contract. The subject complaint appears to only involve the allegedly fraudulent deed of trust notwithstanding the allegations of the Palumbo litigation.

On

March 15, 2024, Defendants answered and on March 18, 2024 they filed a cross-complaint against Nick A. Alden, Law Offices of Nick A. Alden, and Aleksey Sirotn for Professional Negligence, Breach of Fiduciary Duty, and Declaratory Relief. Cross-Complainants allege that Alden conducted the Palumbo litigation in a substandard manner, as well as engaged in conduct constituting a conflict of interest without obtaining a waiver or consent from the clients. On July 29, 2024, Cross-Complainants requested dismissal of Aleksey Sirotn and Law Offices of Nick A. Alden without prejudice. Dismissal was subsequently entered on July 30, 2024. On September 4, 2024, the court overruled Alden’s demurrer to the cross-complaint as to the professional negligence and breach of

contract causes of action and sustained the demurrer to the declaratory relief cause of action with 30 days leave to amend. Alden answered the cross-complaint on October 4, 2024. On July 23, 2025, the Westleys and Alden submitted a stipulation and request to dismiss the related case without prejudice and dismissal was subsequently entered on August 21, 2025.

RULING: Denied.

Request
for Judicial Notice: Granted.

The Court takes judicial notice of the existence of documents filed in this action and other actions. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.) Judicial notice is also taken of the existence of orders in this case and in the Court of Appeal and the truth of the results reached therein. (Id. at pp. 885-86.)

Defendants move to declare Plaintiff a vexatious litigant under Code of Civil Procedure section 391, subdivision (b)(3) and to require him to furnish security in the amount of \$175,000. They further move for a prefilming order and to require Plaintiff to include a certification for future motions he files. Defendants argue that a vexatious litigant designation is warranted here because of repeatedly filed unsuccessful motions and duplicative initiation of a second action. Plaintiff opposes the motion, contending that Defendants fail to show that Plaintiff's filings were frivolous or for the purpose of harassing Defendants. Defendants' motion is denied.

A person may be a vexatious litigant if in litigation while acting in propria persona, a person "repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 391, subd. (b)(3).) "Not all failed motions can support a vexatious litigant designation." (Morton v. Wagner (2007) 156 Cal.App.4th 963, 972.) The repeated motions "must be so devoid of merit and be so frivolous that they can be described as a 'flagrant abuse of the system,' have 'no reasonable probability of success,' lack 'reasonable or probable cause or excuse' and are clearly meant to 'abuse the processes of the courts and to harass the adverse party. . . ." (Id. at p. 972.) A court may enter

a prefiling order against a vexatious litigant which prohibits them from “filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed.” (Code Civ. Proc., § 391.7, subd. (a).) A defendant may also move to require a vexatious plaintiff to furnish a security upon a showing that “there is not a reasonable probability that [the plaintiff] will prevail in the litigation against the moving defendant.” (Id. § 391.1, subd. (a).)

A vexatious litigant designation is not warranted here. Defendants primarily rely on Plaintiff's continued pursuit of a theory based on an interest in Defendants' property despite rejections of applications for writs of attachment and expungement of his lis pendens. [RJN Exs. 2-7.] However, these prior orders do not preclude this theory of recovery. Determinations in attachment proceedings have no effect on the issues in the main action and are inadmissible at trial. (Code Civ. Proc., § 484.100.) The minute order for the motion to expunge lis pendens displays that the lis pendens was expunged because the basis of Plaintiff's property interest was an equitable lien and has no bearing on the viability of his claims. (Campbell v. Superior Court (2005) 132 Cal.App.4th 904, 912; Urez Corp. v. Superior Court (1987) 190 Cal.App.3d 1141, 1149 [“Whether real party's action is ultimately meritorious is not relevant to the determination of the propriety of his lis pendens”].) Nor do Plaintiff's repeated attempts to obtain a writ of attachment appear utterly devoid of merit or frivolous. 3/5 of the orders denied attachment on an ex parte basis and the first noticed motion was denied without prejudice due to deficiencies caused by the failure to file a memorandum of points and authorities. [RJN Exs. 2-6.] Thus, the attachment and lis pendens orders do not support a vexatious designation.

To the extent Defendants rely on the Court's denial of Plaintiff's summary judgment or discovery motions, this is unavailing. Although on the summary judgment motion Plaintiff's showing was deficient to sustain his burden as to his pleaded theories, the motion was not devoid of merit. Any incoherency can be explained by the shifting basis for the origin of the \$1.35 million fee claim. The Court did not express an opinion on whether alternative, unpled theories, such as those based on a fee entitlement under certain provisions of the retainer agreement, lacked merit or were frivolous. [RJN Ex. 9.] There is also no indication of discovery abuse. Defendants' motion is therefore denied.

Defendants

to give notice.